

**SUBSTITUTE FOR
SENATE BILL NO. 691**

A bill to amend 1954 PA 116, entitled
"Michigan election law,"
by amending sections 3, 52, 53, 92, 93, 132, 133, 162, 163, 192,
193, 253, 254, 345, 349, 370, 409a, 409b, 412, 424a, 432, 433,
467a, 467b, 510, 534, 535, 544c, 551, 559, 590b, 590c, 590d, 591,
592, 598, 611, 623a, 641, 642a, 686a, 737a, 766, 963, and 970e (MCL
168.3, 168.52, 168.53, 168.92, 168.93, 168.132, 168.133, 168.162,
168.163, 168.192, 168.193, 168.253, 168.254, 168.345, 168.349,
168.370, 168.409a, 168.409b, 168.412, 168.424a, 168.432, 168.433,
168.467a, 168.467b, 168.510, 168.534, 168.535, 168.544c, 168.551,
168.559, 168.590b, 168.590c, 168.590d, 168.591, 168.592, 168.598,
168.611, 168.623a, 168.641, 168.642a, 168.686a, 168.737a, 168.766,
168.963, and 168.970e), section 3 as amended by 2018 PA 603,



sections 53, 93, 133, and 551 as amended by 2012 PA 276, section 163 as amended by 2021 PA 144, sections 193 and 254 as amended by 2021 PA 146, section 349 as amended by 2021 PA 147, section 370 as amended by 2022 PA 104, sections 409b, 433, 467a, and 467b as amended by 2018 PA 120, section 424a as amended by 1999 PA 218, section 510 as amended by 2022 PA 195, section 534 as amended by 2018 PA 224, section 544c as amended by 2018 PA 650, section 590b as amended by 1990 PA 329, sections 590c and 590d as added and sections 592, 598, and 623a as amended by 1988 PA 116, section 591 as amended by 2012 PA 128, section 611 as amended by 1996 PA 583, section 641 as amended by 2015 PA 197, section 642a as amended by 2012 PA 523, section 686a as amended by 1999 PA 216, section 737a as amended by 2018 PA 611, section 766 as amended by 2023 PA 82, section 963 as amended by 2015 PA 99, and section 970e as amended by 2015 PA 102.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 3. As used in this act:

2 (a) "Locked and sealed" is defined in section 14.

3 (b) "Major political party" is defined in section 16.

4 (c) "Metal seal" or "seal" is defined in section 14a.

5 (d) "Name that was formally changed" means a name changed by a
6 proceeding under chapter XI of the probate code of 1939, 1939 PA
7 288, MCL 711.1 to 711.3, or former 1915 PA 314, or through a
8 similar, statutorily sanctioned procedure under the law of another
9 state or country.

10 (e) "Odd year general election" means the election held on the
11 November regular election date in an odd numbered year.

12 (f) "Odd year primary election" means the election held on the
13 ~~August~~**May** regular election date in an odd numbered year.



(g) "Primary" or "primary election" is defined in section 7.

(h) "Regular ballot" means a ballot that is issued to a voter on election day at a polling place location.

(i) "Qualified elector" is defined in section 10.

(j) "Qualified voter file" is defined in section 509m.

(k) "Regular election" means an election held on a regular election date to elect an individual to, or nominate an individual for, elective office in the regular course of the terms of that elective office.

(l) "Regular election date" means 1 of the dates established as a regular election date in section 641.

(m) "Residence" is defined in section 11.

Sec. 52. A general primary election of all political parties ~~shall~~**must** be held in every election precinct in this state on the **first** Tuesday ~~succeeding~~**after** the first Monday in ~~August~~**preceding** **May before** every general November election in which a governor is to be elected, at which time the qualified and registered electors of each political party shall vote for party candidates for the office of governor. This section ~~shall~~**does** not apply to **political** parties required to nominate candidates at caucuses or conventions.

Sec. 53. To obtain the printing of the name of ~~a person~~**an individual** as a candidate for nomination by a political party for the office of governor under a particular party heading ~~upon~~**on** the official primary ballots, there ~~shall~~**must** be filed with the secretary of state nominating petitions signed by a number of qualified and registered electors residing in this state as determined under section 544f. Nominating petitions ~~shall~~**must** be signed by at least 100 registered resident electors in each of at least 1/2 of the congressional districts of ~~the~~**this** state.



1 Nominating petitions ~~shall~~**must** be in the form as prescribed in
 2 section 544c. ~~Until December 31, 2013, nominating petitions shall~~
 3 ~~be received by the secretary of state for filing in accordance with~~
 4 ~~this act up to 4 p.m. of the twelfth Tuesday before the August~~
 5 ~~primary. Beginning January 1, 2014, nominating~~**Nominating** petitions
 6 ~~shall~~**must** be received by the secretary of state for filing in
 7 accordance with this act up to 4 p.m. of the fifteenth Tuesday
 8 before the ~~August~~**May** primary.

9 Sec. 92. A general primary election of all political parties
 10 ~~shall~~**must** be held in every election precinct in this state on the
 11 **first** Tuesday ~~succeeding~~**after** the first Monday in ~~August~~**preceding**
 12 **May before** every general November election, at which time the
 13 qualified and registered electors of each political party may vote
 14 for a party candidate for the office of United States ~~senator,~~
 15 **Senator**, to be filled at ~~said~~**the** election. ~~÷ Provided, That this~~
 16 **This** section ~~shall~~**does** not apply to **political** parties required to
 17 nominate candidates at caucuses or conventions. ~~÷ Provided further,~~
 18 ~~That no~~**A** nomination for the office of United States ~~senator shall~~
 19 **Senator must not** be made unless ~~such~~**the** official is to be elected
 20 at the next succeeding general November election.

21 Sec. 93. In order for the name of a ~~person~~**an individual** as a
 22 candidate for nomination by a political party for the office of
 23 United States ~~senator~~**Senator** to appear under a particular party
 24 heading on the official primary ballot, a nominating petition ~~shall~~
 25 **must** be filed with the secretary of state. The nominating petition
 26 ~~shall have been~~**must be** signed by a number of qualified and
 27 registered electors residing within this state as determined under
 28 section 544f. The nominating petition ~~shall~~**must** be signed by at
 29 least 100 qualified and registered electors in each of at least 1/2



1 of the congressional districts of this state. Nominating petitions
 2 ~~shall~~**must** be in the form as prescribed in section 544c. ~~Until~~
 3 ~~December 31, 2013, the nominating petition shall be filed with the~~
 4 ~~secretary of state no later than 4 p.m. of the twelfth Tuesday~~
 5 ~~before the August primary. Beginning January 1, 2014, the~~**The**
 6 nominating petition ~~shall~~**must** be filed with the secretary of state
 7 no later than 4 p.m. of the fifteenth Tuesday before the ~~August~~**May**
 8 primary.

9 Sec. 132. A general primary election of all political parties
 10 ~~shall~~**must** be held in every election precinct in this state on the
 11 **first** Tuesday ~~succeeding~~**after** the first Monday in ~~August~~
 12 **May before** every general November election, at which time the
 13 qualified and registered electors of each political party within
 14 every congressional district shall vote for party candidates for
 15 the office of ~~representative~~**Representative** in ~~congress~~**Congress** to
 16 be filled at ~~said~~**the** election. ~~Provided, That this~~**This** section
 17 ~~shall~~**does** not apply to **political** parties required to nominate
 18 candidates at caucuses or conventions.

19 Sec. 133. In order for the name of ~~a person~~**an individual** as a
 20 candidate for nomination by a political party for the office of
 21 ~~representative~~**Representative** in ~~congress~~**Congress** to appear under
 22 a particular party heading on the official primary ballot in the
 23 election precincts of a congressional district, a nominating
 24 petition ~~shall have been~~**must be** signed by a number of qualified
 25 and registered electors residing in the district as determined
 26 under section 544f. ~~Until December 31, 2013, if the congressional~~
 27 ~~district comprises more than 1 county, the nominating petition~~
 28 ~~shall be filed with the secretary of state no later than 4 p.m. of~~
 29 ~~the twelfth Tuesday before the August primary. Beginning January 1,~~



1 ~~2014, if~~ **If** the congressional district comprises more than 1
 2 county, the nominating petition ~~shall~~ **must** be filed with the
 3 secretary of state no later than 4 p.m. of the fifteenth Tuesday
 4 before the ~~August~~ **May** primary. ~~Until December 31, 2013, if the~~
 5 ~~congressional district is within 1 county, the nominating petition~~
 6 ~~shall be filed with the county clerk of that county no later than 4~~
 7 ~~p.m. of the twelfth Tuesday before the August primary. Beginning~~
 8 ~~January 1, 2014, if~~ **If** the congressional district is within 1
 9 county, the nominating petition ~~shall~~ **must** be filed with the county
 10 clerk of that county no later than 4 p.m. of the fifteenth Tuesday
 11 before the ~~August~~ **May** primary. Nominating petitions ~~shall~~ **must** be
 12 in the form as prescribed in section 544c.

13 Sec. 162. A general primary election of all political parties
 14 ~~shall~~ **must** be held in every election precinct in this state on the
 15 **first** Tuesday ~~succeeding~~ **after** the first Monday in ~~August~~ **preceding**
 16 **May before** every general November election, at which time the
 17 qualified and registered electors of each political party within
 18 every senatorial district and every representative district shall
 19 vote for party candidates for the offices of state senator and
 20 representative ~~to be filled at the November election. **÷** Provided,~~
 21 ~~That this~~ **This** section ~~shall~~ **does** not apply to **political** parties
 22 required to nominate candidates at caucuses or conventions.

23 Sec. 163. (1) To obtain the printing of the name of an
 24 individual as a candidate for nomination by a political party for
 25 the office of state senator or representative under a particular
 26 party heading ~~upon~~ **on** the official primary ballots in the various
 27 election precincts of a district, there must be filed nominating
 28 petitions signed by a number of qualified and registered electors
 29 residing in the district as determined under section 544f. If the



1 district comprises more than 1 county, the nominating petitions
 2 must be filed with the secretary of state. If the district
 3 comprises 1 county or less, the nominating petitions must be filed
 4 with the county clerk of that county. Nominating petitions must be
 5 in the form prescribed in section 544c. The secretary of state and
 6 the various county clerks shall receive nominating petitions for
 7 filing in accordance with this act up to 4 p.m. of the fifteenth
 8 Tuesday before the ~~August~~**May** primary.

9 (2) ~~In lieu~~**Instead** of filing a nominating petition, a
 10 nonrefundable filing fee of \$100.00 may be paid to the county clerk
 11 or, for a candidate in a district comprising more than 1 county, to
 12 the secretary of state. Payment of the fee and certification of the
 13 name of the candidate paying the fee are governed by the same
 14 provisions as in the case of nominating petitions. The fee must be
 15 deposited in the general fund of the candidate's county of
 16 residence and must be used only for the purchase and maintenance of
 17 voting equipment.

18 Sec. 192. A general primary election of all political parties
 19 ~~shall~~**must** be held in every county of this state on the **first**
 20 Tuesday ~~succeeding~~**after** the first Monday in ~~August~~**preceding****May**
 21 **before** the general November election at which the officers named in
 22 section 191 ~~of this act~~ are to be elected, at which time the
 23 qualified and registered electors of each political party may vote
 24 for party candidates for the offices. This section ~~shall~~**does** not
 25 apply to **political** parties required to nominate candidates at
 26 caucuses or conventions.

27 Sec. 193. (1) To obtain the printing of the name of an
 28 individual as a candidate for nomination by a political party for
 29 an office named in section 191 under a particular party heading



1 ~~upon-on~~ the official primary ballots, there must be filed with the
 2 county clerk nominating petitions signed by a number of qualified
 3 and registered electors residing within the county as determined
 4 under section 544f. Nominating petitions must be in the form
 5 prescribed in section 544c. The county clerk shall receive
 6 nominating petitions up to 4 p.m. of the fifteenth Tuesday before
 7 the ~~August-May~~ primary.

8 (2) To obtain the printing of the name of a candidate of a
 9 political party under the particular party's heading ~~upon-on~~ the
 10 primary election ballots in the various voting precincts of the
 11 county, ~~there may be filed by the candidate, in lieu~~ **the candidate**
 12 **may file, instead** of filing nomination petitions, a nonrefundable
 13 filing fee of \$100.00 to be paid to the county clerk. Payment of
 14 the fee and certification of the candidate's name paying the fee
 15 are governed by the same provisions as in the case of nominating
 16 petitions. The fee must be deposited in the general fund of the
 17 county and must be used only for the purchase and maintenance of
 18 voting equipment.

19 Sec. 253. A general primary election of all political parties
 20 ~~shall-must~~ be held on the **first** Tuesday ~~succeeding-after~~ the first
 21 Monday in ~~August-preceding-May~~ **before** every general November
 22 election in which county road commissioners are elected, at which
 23 time the qualified and registered electors of each political party
 24 may vote for party candidates for the office of county road
 25 commissioner.

26 Sec. 254. (1) To obtain the printing of the name of an
 27 individual as a candidate for nomination by a political party for
 28 the office of county road commissioner under a particular party
 29 heading ~~upon-on~~ the official primary ballots, there must be filed



1 with the county clerk of the county nominating petitions signed by
 2 a number of qualified and registered electors residing within the
 3 county as determined under section 544f. Nominating petitions must
 4 be in the form prescribed in section 544c. The county clerk shall
 5 receive nominating petitions up to 4 p.m. of the fifteenth Tuesday
 6 before the ~~August~~ **May** primary in which county road commissioners
 7 are to be elected.

8 (2) To obtain the printing of the name of a candidate of a
 9 political party under the particular party's heading ~~upon~~ **on** the
 10 primary election ballots in the various voting precincts of the
 11 county, ~~there may be filed by each candidate, in lieu~~ **each**
 12 **candidate may file, instead** of filing nominating petitions, a
 13 nonrefundable filing fee of \$100.00 to be paid to the county clerk.
 14 Payment of the fee and certification of the name of the candidate
 15 paying the fee are governed by the same provisions as in the case
 16 of nominating petitions. The fee must be deposited in the general
 17 fund of the county and must be used only for the purchase and
 18 maintenance of voting equipment.

19 Sec. 345. A primary of all political parties ~~shall~~ **must** be
 20 held in every organized township of this state on the **first** Tuesday
 21 ~~succeeding~~ **after** the first Monday in ~~August~~ **preceding** **May before**
 22 every general November election, at which time the qualified and
 23 registered electors of each political party may vote for party
 24 candidates for township offices.

25 Sec. 349. (1) To obtain the printing of the name of an
 26 individual as a candidate for nomination by a political party for a
 27 township office under the particular party heading ~~upon~~ **on** the
 28 official primary ballots, there must be filed with the township
 29 clerk nominating petitions signed by a number of qualified and



1 registered electors residing within the township as determined
2 under section 544f. Nominating petitions must be in the form
3 prescribed in section 544c. The township clerk shall receive
4 nominating petitions up to 4 p.m. of the fifteenth Tuesday before
5 the ~~August~~**May** primary.

6 (2) To obtain the printing of the name of a candidate of a
7 political party under the particular party's heading ~~upon~~**on** the
8 primary election ballots in the various voting precincts of the
9 township, ~~there may be filed by the candidate, in lieu~~**the**
10 **candidate may file, instead** of filing nominating petitions, a
11 nonrefundable filing fee of \$100.00 to be paid to the township
12 clerk. Payment of the fee and certification of the candidate's name
13 paying the fee are governed by the same provisions as in the case
14 of nominating petitions. The fee must be deposited in the general
15 fund of the township and must be used only for the purchase and
16 maintenance of voting equipment.

17 (3) ~~Within~~**Not later than** 4 days after the last day for filing
18 nominating petitions or a filing fee, the township clerk shall
19 deliver to the county clerk a list setting forth the name, address,
20 and political affiliation and office sought of each candidate who
21 has qualified for a position on the primary ballot.

22 Sec. 370. (1) Except as provided in section 370a or subsection
23 (2), if a vacancy occurs in an elective or appointive township
24 office, the vacancy must be filled by appointment by the township
25 board, and the individual appointed shall hold the office for the
26 remainder of the unexpired term.

27 (2) If 1 or more vacancies occur in an elective township
28 office that cause the number of members serving on the township
29 board to be less than the minimum number of **township** board members



1 that is required to constitute a quorum for the transaction of
2 business by the **township** board, the board of county election
3 commissioners shall make temporary appointment of the number of
4 **township board** members required to constitute a quorum for the
5 transaction of business by the township board. An official
6 appointed under this subsection shall hold the office only until
7 the official's successor is elected or appointed and qualified. An
8 official who is temporarily appointed under this subsection shall
9 not vote on the appointment of ~~himself or herself~~ **that official** to
10 an elective or appointive township office.

11 (3) If a township official submits a written resignation from
12 an elective township office, for circumstances other than a
13 resignation related to a recall election, that specifies a date and
14 time when the resignation is effective, the township board, within
15 30 days before that effective date and time, may appoint an
16 individual to fill the vacancy at the effective date and time of
17 the resignation. The resigning official shall not vote on the
18 appointment.

19 (4) Except as provided in subsection (5), if the township
20 board does not make an appointment under subsection (3), or if a
21 vacancy occurs in an elective township office and the vacancy is
22 not filled by the township board or the board of county election
23 commissioners within 45 days after the beginning of the vacancy,
24 the county clerk of the county in which the township is located
25 shall call a special election within 5 calendar days to fill the
26 vacancy. Not later than 4 p.m. on the fifteenth calendar day after
27 the county clerk calls a special election under this section, the
28 county party committee for each political party in the county in
29 which the township is located shall submit a nominee to fill the



vacancy. The special election must be held on the next regular election date that is not ~~less~~**fewer** than 60 days after the deadline for submitting nominees under this section or 70 days after the deadline for submitting nominees under this section if the next regular election date is the even year ~~August~~**May** primary or the general November election. Notice of the special election must be given in the same manner required by section 653a. A special election called under this section does not affect the rights of a qualified elector to register for any other election. An individual elected to fill a vacancy shall serve for the remainder of the unexpired term.

(5) Subsection (4) does not apply to the office of township constable. If a vacancy occurs in the office of township constable, the township board shall determine if and when the vacancy is filled by appointment. If the township board does not fill the vacancy by appointment, the office of township constable ~~must remain~~**remains** vacant until the next general or special election in which township offices are filled.

Sec. 409a. A general nonpartisan primary election ~~shall~~**must** be held in every appellate court district of this state on the **first** Tuesday ~~succeeding~~**after** the first Monday in ~~August~~**May before** every general November election in which judges of the court of appeals are to be elected, at which time the qualified and registered electors may vote for nonpartisan candidates for the office of judge of the court of appeals. ~~÷ Provided, however, That if, If,~~ upon **the** expiration of the time for filing petitions for the primary election of ~~said~~**the** judge of the court of appeals in any appellate court district, it ~~shall appear~~**appears** that there are not to exceed twice the number of candidates as there are



1 ~~persons~~**individuals** to be elected, then the secretary of state
 2 shall certify to the county board or boards of election
 3 commissioners the names of ~~such~~**the** candidates for court of appeals
 4 judge whose nominating petitions, filing fee, or affidavit of
 5 candidacy have been properly filed, and ~~such~~**those** candidates ~~shall~~
 6 ~~be~~**are** the nominees for judge of the court of appeals and ~~shall~~
 7 **must** be so certified. As to ~~such~~**that** office, there ~~shall~~**must not**
 8 be ~~no~~**a** primary election and this office ~~shall~~**must** be omitted from
 9 the judicial primary ballot.

10 Sec. 409b. (1) To obtain the printing of the name of a
 11 qualified ~~person~~**individual** other than an incumbent judge of the
 12 court of appeals as a candidate for nomination for the office of
 13 judge of the court of appeals ~~upon~~**on** the official nonpartisan
 14 primary ballots, there must be filed with the secretary of state
 15 nominating petitions containing the signatures, addresses, and
 16 dates of signing of a number of qualified and registered electors
 17 residing in the appellate court district as determined under
 18 section 544f. The provisions of sections 544a and 544b apply. The
 19 secretary of state shall receive nominating petitions up to 4 p.m.
 20 on the fifteenth Tuesday before the primary.

21 (2) Nominating petitions filed under this section are valid
 22 only if ~~they~~**the nominating petitions** clearly indicate for which of
 23 the following offices the candidate is filing, consistent with
 24 subsection (8):

25 (a) An unspecified existing judgeship for which the incumbent
 26 judge is seeking election.

27 (b) An unspecified existing judgeship for which the incumbent
 28 judge is not seeking election.

29 (c) A new judgeship.



1 (3) Nominating petitions specifying a new or existing court of
2 appeals judgeship may not be used to qualify a candidate for
3 another judicial office of the same court in the same judicial
4 district. ~~A person~~ **An individual** who files nominating petitions for
5 election to more than 1 court of appeals judgeship has not more
6 than 3 days following the close of filing to withdraw from all but
7 1 filing.

8 (4) In a primary and general election ~~for 2 or more judgeships~~
9 where more than 1 of the categories in subsection (2) could be
10 selected, ~~a candidate shall apply to the bureau of elections for~~
11 **shall post on the department of state's website** a written statement
12 of office designation to correspond to the **applicable** judgeship.
13 ~~sought by the candidate.~~ The office designation provided by the
14 secretary of state must be included in the heading of all
15 nominating petitions. Nominating petitions containing an improper
16 office designation are invalid.

17 (5) The secretary of state shall issue an office designation
18 of incumbent position for any judgeship for which the incumbent
19 judge is eligible to seek reelection. If an incumbent judge does
20 not file an affidavit of candidacy by the deadline, the secretary
21 of state shall notify all candidates for that office that a
22 nonincumbent position exists. All nominating petitions circulated
23 for the nonincumbent position subsequent to the deadline must bear
24 an office designation of nonincumbent position. All signatures
25 collected before the affidavit of candidacy filing deadline may be
26 filed with the nonincumbent nominating petitions.

27 (6) An incumbent judge of the court of appeals may become a
28 candidate in the primary election for the office of which ~~he or she~~
29 **the judge** is the incumbent by filing with the secretary of state an



1 affidavit of candidacy not less than 134 days before the date of
2 the primary election. However, if an incumbent judge of the court
3 of appeals was appointed to fill a vacancy and the judge entered
4 upon the duties of the office less than 137 days before the date of
5 the primary election but before the fifteenth Tuesday before the
6 primary election, the incumbent judge may file the affidavit of
7 candidacy not more than 3 days after entering upon the duties of
8 office. The affidavit of candidacy must contain statements that the
9 affiant is an incumbent judge of the court of appeals, is domiciled
10 within the district, will not attain the age of 70 by the date of
11 election, and is a candidate for election to the office of judge of
12 the court of appeals.

13 (7) In the primary and general November election for 2 or more
14 judgeships of the court of appeals in a judicial district, each of
15 the following categories of candidates must be listed separately on
16 the ballot, consistent with subsection (8):

17 (a) The names of candidates for the judgeship or judgeships
18 for which the incumbent is seeking election.

19 (b) The names of candidates for the judgeship or judgeships
20 for which the incumbent is not seeking election.

21 (c) The names of candidates for a newly created judgeship or
22 judgeships.

23 (8) ~~If~~ **Subject to subsection (9), if** the death or
24 disqualification of an incumbent judge triggers the application of
25 section 409d(2), then for the purposes of subsections (2) and (7),
26 that judgeship must be regarded as a judgeship for which the
27 incumbent judge is not seeking election. The application of this
28 subsection includes, but is not limited to, circumstances in which
29 the governor appoints an individual to fill the vacancy and that



individual seeks to qualify as a nominee under section 409d(2).

(9) If an open seat for the office of judge of the court of appeals is filled by appointment while nominating petitions are being circulated for that office, the nominating petition signatures obtained before the date on which the appointee files an affidavit of candidacy for that office are valid as long as the nominating petitions identify the office sought as a nonincumbent position. On the date the appointee files an affidavit of candidacy for that office, the nominating petitions may identify the office sought as either an incumbent position or a nonincumbent position. After the date on which the appointee files an affidavit of candidacy for that office, the office sought switches from a nonincumbent position to an incumbent position, and the nominating petition signatures obtained after the appointee files an affidavit of candidacy for that office must be obtained on nominating petitions that identify the office sought as an incumbent position.

Sec. 412. A general nonpartisan primary election ~~shall~~**must** be held in every county of this state on the **first** Tuesday ~~succeeding~~**after** the first Monday in ~~August prior to~~**May before** the general election at which judges of the circuit court are elected, at which time the qualified and registered electors may vote for nonpartisan candidates for the office of judge of the circuit court. If, upon the expiration of the time for filing petitions or incumbency affidavits of candidacy for the primary election of ~~said~~**the** judge of the circuit court in any judicial circuit, it ~~shall appear~~**appears** that there are not to exceed twice the number of candidates as there are ~~persons~~**individuals** to be elected, then the secretary of state shall certify to the county board of election commissioners the name of ~~such~~**the** candidate for circuit court



1 judge whose petitions or affidavits have been properly filed, and
 2 ~~such-the~~ candidate ~~shall-be~~ **is** the nominee for the judge of the
 3 circuit court and ~~shall-must~~ be so certified. As to ~~such-that~~
 4 office, there ~~shall-must not~~ be ~~no-a~~ primary election and this
 5 office ~~shall-must~~ be omitted from the judicial primary ballot.

6 Sec. 424a. (1) In the primary and general election for 2 or
 7 more judgeships of the circuit court, each of the following
 8 categories of candidates ~~shall-must~~ be listed separately on the
 9 ballot, consistent with subsection (3):

10 (a) The names of candidates for the judgeship or judgeships
 11 for which the incumbent is seeking election.

12 (b) The names of candidates for an existing judgeship or
 13 judgeships for which the incumbent is not seeking election.

14 (c) The names of candidates for a newly created judgeship or
 15 judgeships.

16 (2) Nominating petitions filed under section 413 are valid
 17 only if ~~they-the~~ **nominating petitions** clearly indicate for which of
 18 the following offices the candidate is filing, consistent with
 19 subsection (3):

20 (a) An unspecified existing judgeship for which the incumbent
 21 judge is not seeking election.

22 (b) A new judgeship.

23 (c) An unspecified existing judgeship for which the incumbent
 24 judge is seeking election.

25 (3) If the death or disqualification of an incumbent judge
 26 triggers the application of section 415(2), then for the purposes
 27 of subsections (1) and (2), that judgeship ~~shall-must~~ be regarded
 28 as a judgeship for which the incumbent judge is not seeking
 29 election. The application of this subsection includes, but is not



1 limited to, circumstances in which the governor appoints an
 2 individual to fill the vacancy and that individual seeks to qualify
 3 as a nominee under section 415(2).

4 (4) ~~A person~~ **An individual** who files nominating petitions for
 5 election to more than 1 circuit judgeship ~~shall have~~ **has** not more
 6 than 3 days following the close of filing to withdraw from all but
 7 1 filing.

8 (5) In a primary and general election ~~for 2 or more judgeships~~
 9 where more than 1 of the categories in subsection (2) could be
 10 selected, ~~a candidate shall apply to the bureau of elections for~~
 11 **shall post on the department of state's website** a written statement
 12 of office designation to correspond to the **applicable** judgeship.
 13 ~~sought by the candidate.~~ The office designation provided by the
 14 secretary of state ~~shall~~ **must** be included in the heading of all
 15 nominating petitions. Nominating petitions containing an improper
 16 office designation are invalid.

17 (6) The secretary of state shall issue an office designation
 18 of incumbent position for any judgeship for which the incumbent
 19 judge is eligible to seek reelection. If an incumbent judge does
 20 not file an affidavit of candidacy by the deadline, the secretary
 21 of state shall notify all candidates for that office that a
 22 nonincumbent position exists. All nominating petitions circulated
 23 for the nonincumbent position subsequent to the deadline ~~shall~~ **must**
 24 bear an office designation of nonincumbent position. All signatures
 25 collected ~~prior to~~ **before** the affidavit of candidacy filing
 26 deadline may be filed with the nonincumbent nominating petitions.

27 (7) **If an open seat for the office of judge of the circuit**
 28 **court is filled by appointment while nominating petitions are being**
 29 **circulated for that office, the nominating petition signatures**



1 obtained before the date on which the appointee files an affidavit
 2 of candidacy for that office are valid as long as the nominating
 3 petitions identify the office sought as a nonincumbent position. On
 4 the date the appointee files an affidavit of candidacy for that
 5 office, the nominating petitions may identify the office sought as
 6 either an incumbent position or a nonincumbent position. After the
 7 date on which the appointee files an affidavit of candidacy for
 8 that office, the office sought switches from a nonincumbent
 9 position to an incumbent position, and the nominating petition
 10 signatures obtained after the appointee files an affidavit of
 11 candidacy for that office must be obtained on nominating petitions
 12 that identify the office sought as an incumbent position.

13 Sec. 432. A general nonpartisan primary election ~~shall~~**must** be
 14 held in every county of this state on the **first** Tuesday ~~succeeding~~
 15 **after** the first Monday in ~~August preceding~~**May before** every general
 16 November election at which judges of probate are to be elected, at
 17 which time the qualified and registered electors may vote for
 18 nonpartisan candidates for the office of judge of probate. If, upon
 19 the expiration of the time for filing petitions or incumbency
 20 affidavits of candidacy for the primary election of ~~said~~**the**
 21 probate judges in any county, it ~~shall appear~~**appears** that there
 22 are not to exceed twice the number of candidates as there are
 23 ~~persons~~**individuals** to be elected, then the county clerk shall
 24 certify to the county board of election commissioners the name of
 25 ~~such~~**the** candidate for probate judge whose petitions have been
 26 properly filed, and ~~such~~**the** candidate ~~shall be~~**is** the nominee for
 27 the judge of probate and ~~shall~~**must** be so certified. As to ~~such~~
 28 **that** office, there ~~shall~~**must not** be ~~no~~**a** primary election and this
 29 office ~~shall~~**must** be omitted from the judicial primary ballot.



1 Sec. 433. (1) Except as otherwise provided in this subsection,
 2 to obtain the printing of the name of ~~a person~~ **an individual** as a
 3 candidate for nomination for the office of judge of probate ~~upon~~ **on**
 4 the official nonpartisan primary ballots, there must be filed with
 5 the county clerk of each county nominating petitions containing the
 6 signatures, addresses, and dates of signing of a number of
 7 qualified and registered electors residing in the county as
 8 determined under section 544f or by the filing of an affidavit
 9 according to section 433a. In the case of a probate court district,
 10 to obtain the printing of the name of ~~a person~~ **an individual** as a
 11 candidate for nomination for the office of judge of probate ~~upon~~ **on**
 12 the official nonpartisan primary ballots, there must be filed with
 13 the secretary of state nominating petitions containing the
 14 signatures, addresses, and dates of signing of a number of
 15 qualified and registered electors residing in the probate court
 16 district as determined under section 544f or by the filing of an
 17 affidavit according to section 433a. The county clerk or, in the
 18 case of a probate court district, the secretary of state shall
 19 receive nominating petitions up to 4 p.m. on the fifteenth Tuesday
 20 before the ~~August~~ **May** primary. The provisions of sections 544a and
 21 544b apply.

22 (2) Nominating petitions filed under this section are valid
 23 only if they clearly indicate for which of the following offices
 24 the candidate is filing, consistent with section 435a(2):

25 (a) An unspecified existing judgeship for which the incumbent
 26 judge is seeking election.

27 (b) An unspecified existing judgeship for which the incumbent
 28 judge is not seeking election.

29 (c) A new judgeship.



1 (3) ~~A person~~ **An individual** who files nominating petitions for
 2 election to more than 1 probate judgeship has not more than 3 days
 3 following the close of filing to withdraw from all but 1 filing.

4 (4) In a primary and general election ~~for 2 or more judgeships~~
 5 where more than 1 of the categories in subsection (2) could be
 6 selected, ~~a candidate shall apply to the bureau of elections for~~
 7 **shall post on the department of state's website** a written statement
 8 of office designation to correspond to the **applicable** judgeship.
 9 ~~sought by the candidate.~~ The office designation provided by the
 10 secretary of state must be included in the heading of all
 11 nominating petitions. Nominating petitions containing an improper
 12 office designation are invalid.

13 (5) The secretary of state shall issue an office designation
 14 of incumbent position for any judgeship for which the incumbent
 15 judge is eligible to seek reelection. If an incumbent judge does
 16 not file an affidavit of candidacy by the deadline, the secretary
 17 of state shall notify all candidates for that office that a
 18 nonincumbent position exists. All nominating petitions circulated
 19 for the nonincumbent position after the deadline must bear an
 20 office designation of nonincumbent position. All signatures
 21 collected before the affidavit of candidacy filing deadline may be
 22 filed with the nonincumbent nominating petitions.

23 (6) **If an open seat for the office of judge of probate is**
 24 **filled by appointment while nominating petitions are being**
 25 **circulated for that office, the nominating petition signatures**
 26 **obtained before the date on which the appointee files an affidavit**
 27 **of candidacy for that office are valid as long as the nominating**
 28 **petitions identify the office sought as a nonincumbent position. On**
 29 **the date the appointee files an affidavit of candidacy for that**



1 office, the nominating petitions may identify the office sought as
 2 either an incumbent position or a nonincumbent position. After the
 3 date on which the appointee files an affidavit of candidacy for
 4 that office, the office sought switches from a nonincumbent
 5 position to an incumbent position, and the nominating petition
 6 signatures obtained after the appointee files an affidavit of
 7 candidacy for that office must be obtained on nominating petitions
 8 that identify the office sought as an incumbent position.

9 (7) ~~(6)~~—If a candidate for nomination for the office of judge
 10 of probate receives incorrect or inaccurate written information
 11 from the county clerk or, in the case of a probate court district,
 12 the secretary of state concerning the number of nominating petition
 13 signatures required under section 544f and that incorrect or
 14 inaccurate written information is published or distributed by the
 15 county clerk or, in the case of a probate court district, the
 16 secretary of state, the candidate may bring an action in a court of
 17 competent jurisdiction for equitable relief. A court may grant
 18 equitable relief to a candidate under this subsection if all of the
 19 following occur:

20 (a) The candidate brings the action for equitable relief
 21 ~~within~~ **not later than** 6 days after the candidate is notified by the
 22 county clerk or, in the case of a probate court district, the
 23 secretary of state that the candidate's nominating petition
 24 contains insufficient signatures.

25 (b) The candidate files an affidavit certifying that ~~he or she~~
 26 **the candidate** contacted and received from the county clerk or, in
 27 the case of a probate court district, the secretary of state
 28 incorrect or inaccurate written information concerning the number
 29 of nominating petition signatures required under section 544f.



1 (c) The county clerk or, in the case of a probate court
 2 district, the secretary of state published or distributed the
 3 incorrect or inaccurate written information concerning the number
 4 of nominating petition signatures required under section 544f
 5 before the filing deadline under subsection (1).

6 (d) The county clerk or, in the case of a probate court
 7 district, the secretary of state did not inform the candidate at
 8 least 14 days before the filing deadline under subsection (1) that
 9 incorrect or inaccurate written information concerning the number
 10 of nominating petition signatures required under section 544f had
 11 been published or distributed.

12 (8) ~~(7)~~—If a court grants equitable relief to a candidate
 13 under subsection ~~(6)~~, ~~(7)~~, the candidate must be given the
 14 opportunity to obtain additional nominating petition signatures to
 15 meet the requirements under section 544f. The additional nominating
 16 petition signatures obtained by a candidate must be filed with the
 17 county clerk or, in the case of a probate court district, the
 18 secretary of state no later than 4 p.m. on the fifth business day
 19 after the date that the court order granting equitable relief is
 20 filed.

21 (9) ~~(8)~~—The nominating petition signatures filed under this
 22 section are subject to challenge as provided in section 552.

23 Sec. 467a. A general nonpartisan primary election must be held
 24 in every district and election division of this state on the **first**
 25 Tuesday after the first Monday in ~~August~~ **May** before the general
 26 election at which judges of the district court are elected, at
 27 which time the qualified and registered electors may vote for
 28 nonpartisan candidates for judge of the district court. If upon the
 29 expiration of the time for filing petitions of candidacy for the



1 primary election of the judge of the district court in any district
 2 or election division, it appears that there are not to exceed twice
 3 the number of candidates as there are ~~persons~~ **individuals** to be
 4 elected, the secretary of state shall certify to the county board
 5 of election commissioners the name of those candidates for district
 6 court judge whose petitions or affidavits of candidacy have been
 7 properly filed and those candidates are the nominees for the judge
 8 of the district court and must be so certified. As to that office,
 9 there must not be a primary election and this office must be
 10 omitted from the judicial primary ballot.

11 Sec. 467b. (1) To obtain the printing of the name of ~~a person~~
 12 **an individual** as a candidate for nomination for the office of judge
 13 of the district court ~~upon~~ **on** the official nonpartisan primary
 14 ballots, there must be filed with the secretary of state nominating
 15 petitions containing the signatures, addresses, and dates of
 16 signing of a number of qualified and registered electors residing
 17 in the judicial district or division as determined under section
 18 544f. An incumbent district court judge may also become a candidate
 19 by the filing of an affidavit in lieu of petitions according to
 20 section 467c. The secretary of state shall receive nominating
 21 petitions up to 4 p.m. on the fifteenth Tuesday before the primary.
 22 The provisions of sections 544a and 544b apply.

23 (2) Nominating petitions filed under this section are valid
 24 only if ~~they~~ **the nominating petitions** clearly indicate for which of
 25 the following offices the candidate is filing, consistent with
 26 section 467c(4):

27 (a) An unspecified existing judgeship for which the incumbent
 28 judge is seeking election.

29 (b) An unspecified existing judgeship for which the incumbent



1 judge is not seeking election.

2 (c) A new judgeship.

3 (3) ~~A person~~ **An individual** who files nominating petitions for
4 election to more than 1 district judgeship has not more than 3 days
5 following the close of filing to withdraw from all but 1 filing.

6 (4) In a primary and general election ~~for 2 or more judgeships~~
7 where more than 1 of the categories in subsection (2) could be
8 selected, ~~a candidate shall apply to the bureau of elections for~~
9 **shall post on the department of state's website** a written statement
10 of office designation to correspond to the **applicable** judgeship.
11 ~~sought by the candidate.~~ The office designation provided by the
12 secretary of state must be included in the heading of all
13 nominating petitions. Nominating petitions containing an improper
14 office designation are invalid.

15 (5) The secretary of state shall issue an office designation
16 of incumbent position for any judgeship for which the incumbent
17 judge is eligible to seek reelection. If an incumbent judge does
18 not file an affidavit of candidacy by the deadline, the secretary
19 of state shall notify all candidates for that office that a
20 nonincumbent position exists. All nominating petitions circulated
21 for the nonincumbent position after the deadline must bear an
22 office designation of nonincumbent position. All signatures
23 collected before the affidavit of candidacy filing deadline may be
24 filed with the nonincumbent nominating petitions.

25 (6) **If an open seat for the office of judge of the district**
26 **court is filled by appointment while nominating petitions are being**
27 **circulated for that office, the nominating petition signatures**
28 **obtained before the date on which the appointee files an affidavit**
29 **of candidacy for that office are valid as long as the nominating**



1 petitions identify the office sought as a nonincumbent position. On
2 the date the appointee files an affidavit of candidacy for that
3 office, the nominating petitions may identify the office sought as
4 either an incumbent position or a nonincumbent position. After the
5 date on which the appointee files an affidavit of candidacy for
6 that office, the office sought switches from a nonincumbent
7 position to an incumbent position, and the nominating petition
8 signatures obtained after the appointee files an affidavit of
9 candidacy for that office must be obtained on nominating petitions
10 that identify the office sought as an incumbent position.

11 (7) ~~(6)~~—If a candidate for nomination for the office of judge
12 of the district court receives incorrect or inaccurate written
13 information from the secretary of state or the bureau of elections
14 concerning the number of nominating petition signatures required
15 under section 544f and that incorrect or inaccurate written
16 information is published or distributed by the secretary of state
17 or the bureau of elections, the candidate may bring an action in a
18 court of competent jurisdiction for equitable relief. A court may
19 grant equitable relief to a candidate under this subsection if all
20 of the following occur:

21 (a) The candidate brings the action for equitable relief
22 within 6 days after the candidate is notified by the secretary of
23 state or the bureau of elections that the candidate's nominating
24 petition contains insufficient signatures.

25 (b) The candidate files an affidavit certifying that ~~he or she~~
26 **the candidate** contacted and received from the secretary of state or
27 the bureau of elections incorrect or inaccurate written information
28 concerning the number of nominating petition signatures required
29 under section 544f.



1 (c) The secretary of state or the bureau of elections
 2 published or distributed the incorrect or inaccurate written
 3 information concerning the number of nominating petition signatures
 4 required under section 544f before the filing deadline under
 5 subsection (1).

6 (d) The secretary of state or bureau of elections did not
 7 inform the candidate at least 14 days before the filing deadline
 8 under subsection (1) that incorrect or inaccurate written
 9 information concerning the number of nominating petition signatures
 10 required under section 544f had been published or distributed.

11 (8) ~~(7)~~ If a court grants equitable relief to a candidate
 12 under subsection ~~(6)~~, ~~(7)~~, the candidate must be given the
 13 opportunity to obtain additional nominating petition signatures to
 14 meet the requirements under section 544f. The additional nominating
 15 petition signatures obtained by a candidate must be filed with the
 16 secretary of state no later than 4 p.m. on the fifth business day
 17 after the date that the court order granting equitable relief is
 18 filed.

19 (9) ~~(8)~~ The nominating petition signatures filed under this
 20 section are subject to challenge as provided in section 552.

21 Sec. 510. ~~(1) Until December 31, 2022, at least once a month,~~
 22 ~~the county clerk shall forward a list of the last known address and~~
 23 ~~birth date of all individuals over 17-1/2 years of age who have~~
 24 ~~died in the county to the clerk of each city or township in the~~
 25 ~~county. The city or township clerk shall compare this list with the~~
 26 ~~registration records and cancel the registration of the deceased~~
 27 ~~electors.~~

28 (1) ~~(2) Beginning January 1, 2023, and except~~ **Except** as
 29 otherwise provided in subsections **(5) and (6)**, and ~~(7)~~, at least



1 once a month, and not later than the second business day of each
 2 month, each county clerk shall update the qualified voter file to
 3 initiate the cancellation of the voter registration of all
 4 individuals over 17-1/2 years of age who have died in the county.

5 ~~(2) (3) Beginning January 1, 2023, each~~ **Each** time a county
 6 clerk updates the qualified voter file under subsection ~~(2), (6),~~
 7 ~~or (7), (1), (5), or (6),~~ the secretary of state shall, ~~within~~ **not**
 8 **later than** 24 hours after the qualified voter file is updated, send
 9 an electronic notification to the appropriate city or township
 10 clerk regarding each initiated cancellation of voter registration
 11 in that city or township.

12 ~~(3) (4) Beginning January 1, 2023, upon~~ **Upon** receiving an
 13 electronic notification under subsection ~~(3), (2),~~ the city or
 14 township clerk shall compare the electronic notification with the
 15 voter registration records in that city or township and complete
 16 the cancellation of the voter registration of each deceased elector
 17 in that city or township.

18 ~~(4) (5) Beginning January 1, 2023, if~~ **If** the secretary of
 19 state updates the qualified voter file to cancel the voter
 20 registration of any deceased elector, the secretary of state shall,
 21 ~~within~~ **not later than** 24 hours after the qualified voter file is
 22 updated, send an electronic notification to the appropriate city or
 23 township clerk regarding each canceled voter registration in that
 24 city or township. The secretary of state shall notify each
 25 appropriate city or township clerk of any voter registration that
 26 needs to be canceled after 4 p.m. on the day before an election so
 27 that the city or township clerk can cancel the voter registration.

28 ~~(5) (6) Beginning January 1, 2023, on~~ **On** the first Friday in
 29 ~~July~~ **April** before an ~~August~~ **May** election and continuing until 16



1 days before that ~~August~~**May** election, each county clerk shall
 2 update the qualified voter file by the close of business each
 3 Friday before that ~~August~~**May** election to initiate the cancellation
 4 of the voter registration of all individuals over 17-1/2 years of
 5 age who have died in the county. ~~Beginning January 1, 2023, on~~**On**
 6 the first Friday in October before a November election and
 7 continuing until 16 days before that November election, each county
 8 clerk shall update the qualified voter file by the close of
 9 business each Friday before that November election to initiate the
 10 cancellation of the voter registration of all individuals over 17-
 11 1/2 years of age who have died in the county.

12 (6) ~~(7) Beginning January 1, 2023, 15~~**Fifteen** days before each
 13 ~~August~~**May** and November election and continuing until the day
 14 before each ~~August~~**May** and November election, each county clerk
 15 shall update the qualified voter file by the close of business each
 16 business day before the ~~August~~**May** or November election to initiate
 17 the cancellation of the voter registration of all individuals over
 18 17-1/2 years of age who have died in the county. Each county clerk
 19 shall notify each appropriate city or township clerk in the county
 20 of any voter registration that needs to be canceled after 4 p.m. on
 21 the day before ~~an August~~**a May** or November election so that the
 22 city or township clerk can cancel the voter registration.

23 (7) ~~(8)~~ Upon receiving notice that an elector in the city or
 24 township has died and determining that the elector was issued an
 25 absent voter ballot, the clerk of that city or township shall make
 26 the clerk's best effort to remove the absent voter ballot return
 27 envelope or any ballot returned by that elector from processing and
 28 spoil the ballot for that elector.

29 Sec. 534. A general primary of all political parties except as



provided in sections 532 and 685 must be held in every election precinct in this state on the **first** Tuesday after the first Monday in ~~August~~**May** before every general November election, at which time the qualified and registered voters of each political party may vote for party candidates for the office of governor, United States Senator, Representative in Congress, state senator, representative in the legislature, county executive, prosecuting attorney, sheriff, county clerk, county treasurer, register of deeds, drain commissioner, public works commissioner, county road commissioner, county mine inspector, surveyor, and candidates for office in townships. A nomination for an office must be made only if the official is to be elected at the next succeeding general November election.

Sec. 535. A general primary ~~shall~~**must** be held in every election precinct in this state on the **first** Tuesday ~~succeeding~~**after** the first Monday in ~~August~~**May** ~~preceding~~**before** every general November election, at which time the qualified and registered voters may vote for nonpartisan candidates for the office of judge of the court of appeals, judge of the circuit court, judge of probate, and for circuit court commissioner in the years ~~in which~~**such**~~that~~ **those** officers are to be elected.

Sec. 544c. (1) A nominating petition must be 8-1/2 inches by 14 inches in size. On a nominating petition, the words "nominating petition" must be printed in 24-point boldface type. "We, the undersigned," et cetera must be printed in 8-point type. "Warning" and language in the warning must be printed in 12-point boldface type. The balance of the petition must be printed in 8-point type. The name, address, and party affiliation of the candidate and the office for which petitions are signed must be printed in type not

larger than 24-point. The petition must be in the following form:

NOMINATING PETITION

(PARTISAN)

We, the undersigned, registered and qualified ~~voters~~**electors**
of the city or township of , in the county

(strike 1)

of and state of Michigan, nominate,

..... ,

(Name of Candidate)

..... ,

(Street Address or Rural Route) (City or Township)

as a candidate of the party for the office of

..... ,

..... ,

(District, if any)

to be voted for at the primary election to be held on the

..... day of , 20

WARNING

~~A person~~**An individual** who knowingly signs more petitions for the
same office than there are ~~persons~~**individuals** to be elected to the
office, signs a petition more than once, or signs a name other than
~~his or her~~**the individual's** own **name** is violating the provisions of
the Michigan election law.

Printed Street Address

Name and or Date of Signing

Signature Rural Route Zip Code Mo. Day Year

1. _____

2. _____

3. _____



4. _____
 numbered lines as above

CERTIFICATE OF CIRCULATOR

The undersigned circulator of the above petition asserts that ~~he or she~~ **the circulator** is 18 years of age or older and a United States citizen; that each signature on the petition was signed in ~~his or her~~ **the circulator's** presence; that ~~he or she~~ **the circulator** has neither caused nor permitted ~~a person~~ **an individual** to sign the petition more than once and has no knowledge of ~~a person~~ **an individual** signing the petition more than once; and that, to ~~his or her~~ **the circulator's** best knowledge and belief, each signature is the genuine signature of the ~~person~~ **individual** purporting to sign the petition, the ~~person~~ **individual** signing the petition was at the time of signing a registered elector of the city or township listed in the heading of the petition, and the elector was qualified to sign the petition.

Circulator—Do not sign or date certificate until after circulating petition.

____ If the circulator is not a resident of Michigan, the circulator shall make a cross or check mark on the line provided, otherwise each signature on this petition sheet is invalid and the signatures will not be counted by a filing official. By making a cross or check mark on the line provided, the undersigned circulator asserts that ~~he or she~~ **the circulator** is not a resident of Michigan and agrees to accept the jurisdiction of this state for the purpose of any legal proceeding or hearing that concerns a petition sheet executed by the circulator and agrees that legal process served on the secretary of state or a designated agent of



1 the secretary of state has the same effect as if personally served
2 on the circulator.

3 _____
4 (Printed Name and Signature of Circulator) (Date)

5 _____
6 (Complete Residence Address (Street and Number or Rural
7 Route)) Do not enter a post office box

8 _____
9 (City or Township, State, Zip Code)

10 _____
11 (County of Registration, if Registered to Vote, of a
12 Circulator who is not a Resident of Michigan)

13 Warning-A circulator knowingly making a false statement in the
14 above certificate, ~~a person~~ **an individual** not a circulator who
15 signs as a circulator, or ~~a person~~ **an individual** who signs a name
16 other than ~~his or her~~ **the individual's** own **name** as circulator is
17 guilty of a misdemeanor.

18 (2) The petition must be in a form providing a space for the
19 circulator and each elector who signs the petition to print ~~his or~~
20 ~~her~~ **the circulator's or elector's** name. The secretary of state
21 shall prescribe the location of the space for the printed name. The
22 failure of the circulator or an elector who signs the petition to
23 print ~~his or her~~ **the circulator's or elector's** name, to print ~~his~~
24 ~~or her~~ **the circulator's or elector's** name in the location
25 prescribed by the secretary of state, or to enter a zip code or ~~his~~
26 ~~or her~~ **the circulator's or elector's** correct zip code does not
27 affect the validity of the signature of the circulator or the
28 elector who signs the petition. A printed name located in the space
29 prescribed for printed names does not constitute the signature of



1 the circulator or elector. If an elector does not include ~~his or~~
2 ~~her~~ **the elector's** signature, ~~his or her~~ **the elector's** street
3 address or rural route, or the date of signing on the petition as
4 required under subsection (1), the elector's signature is invalid
5 and must not be counted by a filing official.

6 (3) If the circulator of a petition under section 482, a
7 qualifying petition for an office named in section ~~590b(4)~~,
8 **590b(2)**, or a petition to form a new political party under section
9 685 is not a resident of this state, the circulator shall indicate
10 where provided on the certificate of circulator that ~~he or she~~ **the**
11 **circulator** agrees to accept the jurisdiction of this state for the
12 purpose of any legal proceeding or hearing initiated under section
13 476, 552, 590f(2), or 685 that concerns a petition sheet executed
14 by the circulator and agrees that legal process served on the
15 secretary of state or a designated agent of the secretary of state
16 has the same effect as if personally served on the circulator.

17 (4) If the secretary of state or a designated agent of the
18 secretary of state is served with legal process as described in
19 subsection (3), the secretary of state shall promptly notify the
20 circulator by personal service or certified mail at the
21 circulator's residential address as indicated in the certificate of
22 circulator.

23 (5) The circulator of a petition shall sign and date the
24 certificate of circulator before the petition is filed. A
25 circulator shall not obtain electors' signatures after the
26 circulator has signed and dated the certificate of circulator. A
27 filing official shall not count electors' signatures that were
28 obtained after the date the circulator signed the certificate or
29 that are contained in a petition that the circulator did not sign



1 and date.

2 (6) Except as provided in section 544d, a petition sheet must
3 not be circulated in more than 1 city or township and each signer
4 of a petition sheet must be a registered elector of the city or
5 township indicated in the heading of the petition sheet. The
6 invalidity of 1 or more signatures on a petition does not affect
7 the validity of the remainder of the signatures on the petition.

8 (7) An individual shall not sign more nominating petitions for
9 the same office than there are ~~persons~~**individuals** to be elected to
10 the office. An individual who violates this subsection is guilty of
11 a misdemeanor.

12 (8) An individual shall not do any of the following:

13 (a) Sign a petition with a name other than ~~his or her~~**the**
14 **individual's** own **name**.

15 (b) Make a false statement in a certificate on a petition.

16 (c) If not a circulator, sign a petition as a circulator.

17 (d) Sign a name as circulator other than ~~his or her~~**the**
18 **individual's** own **name**.

19 (9) Except as otherwise provided in subsection (10), an
20 individual who violates subsection (8) is guilty of a misdemeanor
21 punishable by a fine of not more than \$500.00, ~~or~~ imprisonment for
22 not more than 93 days, or both.

23 (10) An individual shall not sign a petition with multiple
24 names. An individual who violates this subsection is guilty of a
25 felony.

26 (11) If after a canvass and a hearing on a petition under
27 section 476 or 552 the board of state canvassers determines that an
28 individual has knowingly and intentionally failed to comply with
29 subsection (8) or (10), the board of state canvassers may impose 1



1 or more of the following sanctions:

2 (a) Disqualify obviously fraudulent signatures on a petition
3 form on which the violation of subsection (8) or (10) occurred,
4 without checking the signatures against local registration records.

5 (b) Disqualify from the ballot a candidate who committed,
6 aided or abetted, or knowingly allowed the violation of subsection
7 (8) or (10) on a petition to nominate that candidate.

8 (12) If an individual violates subsection (8) or (10) and the
9 affected petition sheet is filed, each of the following who knew of
10 the violation of subsection (8) or (10) before the filing of the
11 affected petition sheet and who failed to report the violation to
12 the secretary of state, the filing official, if different, the
13 attorney general, a law enforcement officer, or the county
14 prosecuting attorney is guilty of a misdemeanor ~~—~~ punishable by a
15 fine of not more than \$500.00, ~~or~~ imprisonment for not more than 1
16 year, or both:

17 (a) The circulator of the petition, if different than the
18 individual who violated subsection (8) or (10).

19 (b) If the petition is a nominating petition, the candidate
20 whose nomination is sought.

21 (c) If the petition is a petition for a ballot question or
22 recall, the organization or other person sponsoring the petition
23 drive.

24 (13) If after a canvass and a hearing on a petition under
25 section 476 or 552 the board of state canvassers determines that an
26 individual has violated subsection (12), the board of state
27 canvassers may impose 1 or more of the following sanctions:

28 (a) Impose on the organization or other person sponsoring the
29 petition drive an administrative fine of not more than \$5,000.00.



1 (b) Charge the organization or other person sponsoring the
 2 petition drive for the costs of canvassing a petition form on which
 3 a violation of subsection (8) or (10) occurred.

4 (c) Disqualify an organization or other person described in
 5 subdivision (a) from collecting signatures on a petition for a
 6 period of not more than 4 years.

7 (d) Disqualify obviously fraudulent signatures on a petition
 8 form on which a violation of subsection (8) or (10) occurred
 9 without checking the signatures against local registration records.

10 (e) Disqualify from the ballot a candidate who committed,
 11 aided or abetted, or knowingly allowed a violation of subsection
 12 (8) or (10) on a petition to nominate that candidate.

13 (14) If an individual refuses to comply with a subpoena of the
 14 board of state canvassers in an investigation of an alleged
 15 violation of subsection (8), (10), or (12), the board **of state**
 16 **canvassers** may hold the canvass of the petitions in abeyance until
 17 the individual complies.

18 (15) ~~A person~~ **An individual** who aids or abets another in an
 19 act that is prohibited by this section is guilty of that act.

20 (16) The provisions of this section except as otherwise
 21 expressly provided apply to all petitions circulated under
 22 authority of the election law.

23 Sec. 551. ~~Until December 31, 2013, the secretary of state and~~
 24 ~~the various county, township, and city clerks shall receive~~
 25 ~~nominating petitions or filing fees filed under this act up to 4~~
 26 ~~p.m., eastern standard time, of the twelfth Tuesday before the~~
 27 ~~August primary. Beginning January 1, 2014, the~~ **The** secretary of
 28 state and the various county, township, and city clerks shall
 29 receive nominating petitions or filing fees filed under this act up



1 to 4 p.m. ~~, eastern standard time,~~ of the fifteenth Tuesday before
 2 the ~~August~~ **May** primary. ~~The provisions of this~~ **This** section ~~do~~ **does**
 3 not apply to a city that does not nominate its officers under the
 4 provisions of this act.

5 Sec. 559. It ~~shall be~~ **is** the duty of the board of election
 6 commissioners of each county in this state to prepare and furnish
 7 the necessary official primary election ballots, except for city
 8 offices, ~~which~~ **that** may be required for use by the electors of any
 9 political party at the ~~August~~ **May** primary.

10 Sec. 590b. ~~(1) Except as provided in subsection (2) and~~
 11 ~~subject to the requirements prescribed in subsections (3) and (4),~~
 12 ~~a qualifying petition for an office shall be signed by a number of~~
 13 ~~qualified and registered electors of the district that is~~
 14 ~~represented by the office being sought by the candidate equal to~~
 15 ~~not less than 2% of the total number of votes cast for all~~
 16 ~~candidates for governor in the district at the last election in~~
 17 ~~which a governor was elected. In any case, at least 15 signatures~~
 18 ~~shall be submitted.~~

19 ~~(2) Subject to the requirements of subsections (3) and (4), if~~
 20 ~~a qualifying petition is for a statewide elective office, the~~
 21 ~~qualifying petition shall be signed by a number of qualified and~~
 22 ~~registered electors of this state equal to not less than 1% of the~~
 23 ~~total number of votes cast for all candidates for governor at the~~
 24 ~~last election in which a governor was elected.~~

25 **(1)** ~~(3)~~ All signatures on a qualifying petition ~~shall~~ **must** be
 26 obtained not more than 180 days immediately before the date of
 27 filing under section 590c.

28 **(2)** ~~(4)~~ As part of the minimum number of required signatures
 29 under this section, a qualifying petition for the office of



1 ~~president~~**President** of the United States, United States ~~senator,~~
 2 **Senator**, governor, attorney general, secretary of state, state
 3 board of education, board of regents of the ~~university~~**University**
 4 of Michigan, board of trustees of Michigan ~~state university,~~**State**
 5 **University**, board of governors of Wayne ~~state university,~~**State**
 6 **University**, or justice of the supreme court ~~shall~~**must** be signed by
 7 at least 100 registered electors in each of at least 1/2 of the
 8 congressional districts of ~~the~~**this** state.

9 Sec. 590c. (1) A qualifying petition for an office ~~shall~~**must**
 10 be filed with the filing officer authorized to receive a partisan
 11 nominating petition or a certificate of nomination for that office.

12 (2) A qualifying petition for an office elected at the general
 13 November election ~~shall~~**must** be filed not later than 4 p.m. of the
 14 ~~one hundred-tenth~~**twenty-first** day before the ~~general~~**May primary**
 15 election. A qualifying petition for an official elected at an
 16 election other than the general November election ~~shall~~**must** be
 17 filed not later than the deadline established by statute or charter
 18 for filing a partisan petition or certificate of nomination for the
 19 office or at least 90 days before that election, whichever is
 20 later.

21 (3) A candidate who files a qualifying petition ~~shall~~**is** not
 22 ~~be~~ permitted to withdraw ~~his or her~~**the** candidacy unless a written
 23 notice of withdrawal is filed with the filing officer who received
 24 the petition. The **written** notice ~~shall~~**of withdrawal must** be filed
 25 not later than 4 p.m. of the third day after the last day for
 26 filing a qualifying petition.

27 Sec. 590d. (1) Not later than ~~66~~**90** days before the general
 28 November election, a candidate without political party affiliation
 29 for the office of governor shall file with the secretary of state



1 the name of the ~~person~~**individual** who shall appear on the ballot as
 2 candidate for lieutenant governor under section 706. This filing
 3 ~~shall~~**must** be on a form prescribed by the secretary of state. A
 4 candidate for lieutenant governor ~~shall~~**must** meet the
 5 qualifications of section 51. If a candidate for governor fails to
 6 comply with this subsection, the secretary of state shall not
 7 certify ~~his or her~~**the candidate's** name for printing on the general
 8 November election ballot.

9 (2) Not later than ~~66~~**90** days before the general November
 10 election, a candidate without political party affiliation for the
 11 office of ~~president~~**President** of the United States shall file with
 12 the secretary of state the names and addresses of ~~persons~~
 13 **individuals** chosen to be presidential electors and the name of the
 14 ~~person~~**individual** who shall appear on the ballot as candidate for
 15 ~~vice president~~**Vice President of the United States** under section
 16 706. Presidential electors certified under this subsection ~~shall~~
 17 **must** meet the qualifications of section 41. The number of electors
 18 chosen ~~shall~~**must** equal the number of electors permitted by law.
 19 This filing ~~shall~~**must** be on a form prescribed by the secretary of
 20 state. If a candidate for ~~president~~**President of the United States**
 21 fails to comply with this subsection, the secretary of state shall
 22 not certify ~~his or her~~**the candidate's** name for printing on the
 23 general November election ballot.

24 Sec. 591. ~~(1)~~ Except as provided in ~~subsection (2) and~~ section
 25 532, the state convention of all political parties for the
 26 nomination of candidates for state offices in the even numbered
 27 years ~~shall~~**must** commence not ~~less~~**fewer** than ~~60~~**90** days before the
 28 general November election. The date, time, and location of the
 29 state convention ~~shall~~**must** be designated by the state central



1 committees of the various political parties in their call for a
 2 state convention. The calls ~~shall~~**must** be issued at least 60 days
 3 before the ~~August~~**May** primaries.

4 ~~(2) In 2012 only, the state convention of all political~~
 5 ~~parties for the nomination of candidates for state offices shall~~
 6 ~~commence not less than 58 days before the general November~~
 7 ~~election. The date, time, and location of the state convention~~
 8 ~~shall be designated by the state central committees of the various~~
 9 ~~political parties in their call for a state convention. The calls~~
 10 ~~shall be issued at least 60 days before the August primaries.~~

11 Sec. 592. (1) Except as provided in section 532, the county
 12 conventions of all political parties for the election of delegates
 13 to a state convention for the nomination of state officers in the
 14 even numbered years ~~shall~~**must** be held not ~~less~~**fewer** than ~~8~~**30**
 15 days nor more than ~~25~~**60** days after the ~~August primaries~~**May**
 16 **primary.**

17 (2) All county conventions of a political party ~~shall~~**must** be
 18 held on the same day throughout ~~the~~**this** state. The date ~~shall~~**must**
 19 be designated by the state central committee of a political party
 20 in its call for the state convention. The place and hour of meeting
 21 of a county convention ~~shall~~**must** be designated in the call issued
 22 by the county committee of the political party in the county, which
 23 call ~~shall~~**must** be issued not ~~less~~**fewer** than ~~45~~**15** days ~~before the~~
 24 ~~August primaries.~~**after the call to convention issued by the state**
 25 **central committee of the political party for the county committee.**
 26 The number of delegates to the state convention ~~to which~~**that** the
 27 political party in the county is entitled ~~shall~~**to must** be chosen
 28 at the county convention.

29 (3) In all counties having or ~~which~~**that** may ~~hereafter~~ have 2



1 or more congressional districts or parts of congressional districts
 2 within the boundaries of the county, the congressional districts or
 3 a part of a congressional district within the counties ~~shall must~~
 4 each be considered a county within the provisions of this section
 5 for the holding of the county conventions provided for in this
 6 section, and ~~shall must~~ be in place of the county convention. The
 7 nominee for ~~congress~~ **Congress** of the congressional district in the
 8 preceding primary election, the county chairperson, and the county
 9 secretary of the several political parties shall constitute a
 10 committee in each congressional district to name the temporary
 11 chairperson of the first district convention held under this act.
 12 Thereafter, the district chairperson shall act as temporary
 13 chairperson. The convention ~~shall must~~ organize the same as county
 14 conventions and ~~shall must~~ elect delegates to the state convention.
 15 The chairperson and secretary of the convention shall certify to
 16 the state central committee the names and addresses of the
 17 delegates elected, and, when certified, those delegates shall
 18 become the delegates from the district to the state convention.

19 Sec. 598. (1) The state central committee of each political
 20 party shall, at least ~~60~~ **150** days before the ~~August primary,~~
 21 **general November election**, forward by mail **or email** to the
 22 chairperson of each county committee of the political party a copy
 23 of the call for the ~~fall~~ state convention of the political party,
 24 showing the number of delegates ~~to which that~~ each county is
 25 entitled **to** in the state convention of the political party. The
 26 state central committee shall apportion the delegates to the
 27 several counties in proportion to the number of votes cast for the
 28 candidate of the **political** party for secretary of state in each
 29 county, respectively, at the last preceding November general



1 election.

2 (2) In addition to the number of delegates allocated to each
3 county under subsection (1), the state central committees shall
4 allocate an additional number of delegates equal to the number of
5 incumbent legislators nominated by their **political** party and
6 residing in the county.

7 Sec. 611. (1) In the year 1956, and each fourth year after
8 1956, delegates of each political party who were elected to the
9 last prior fall county convention shall reconvene in a county
10 convention. The county conventions, when ~~so~~ convened, ~~shall~~ **must**
11 elect delegates to a state convention. The number of delegates
12 elected ~~shall~~ **must** be the same as the number elected to the last
13 prior spring state convention. The county conventions ~~shall~~ **must** be
14 held at least 90 days ~~prior to~~ **before** the time set for the holding
15 of the national convention of its political party. All county
16 conventions ~~shall~~ **must** be held on the same day and time. The time
17 and place ~~shall~~ **must** be fixed by the state central committee. A
18 state convention composed of delegates elected by the respective
19 county conventions ~~shall~~ **must** be held in the year 1956, and each
20 fourth year after 1956, at least 60 days before the holding of the
21 national convention of its political party.

22 (2) As used in this section:

23 (a) "Delegates of each political party who were elected to the
24 last prior fall county convention" means precinct delegates elected
25 at the last prior ~~August~~ primary election, ~~persons~~ **individuals**
26 nominated as candidates for county offices and state legislative
27 offices who are delegates at large to county conventions under
28 section 599(5), and delegates elected under section 622 or 624d to
29 fill a precinct delegate vacancy for the balance of an unexpired



1 term.

2 (b) ~~"Persons"~~**"Individuals"** nominated as candidates for county
3 offices and state legislative offices who are delegates at large to
4 county conventions under section 599(5)" means incumbent county
5 officials, incumbent state legislators, and unsuccessful candidates
6 for county offices and state legislative offices who are candidates
7 at the last prior regular or special election held for the
8 respective office.

9 (3) Delegates to a state convention ~~shall~~ include only those
10 delegates elected at a county convention.

11 Sec. 623a. (1) On or before ~~April~~**February** 1 in even numbered
12 years, the chairperson of the county committee or district
13 committee of a congressional district or a part of a congressional
14 district considered a county under section 592 of each political
15 party shall forward by mail or otherwise deliver to the board of
16 election commissioners in that county a certificate showing the
17 number of delegates to the county convention to which each precinct
18 of the county is entitled. The chairperson of the state central
19 committee of a political party shall notify the chairperson of the
20 county committee or district committee of a congressional district
21 or a part of a congressional district considered a county under
22 section 592 of that political party no later than ~~March~~**January** 1
23 in even numbered years that the certificate required by this
24 subsection is to be delivered to the board of election
25 commissioners on or before ~~April~~**February** 1 of that year.

26 (2) If the chairperson fails to forward the certificate
27 required by subsection (1) by the day specified, the board of
28 election commissioners shall immediately determine the number of
29 delegates to the county convention that each precinct should elect



1 for ~~the implementation of~~ **implementing** this act.

2 (3) The allotment of delegates to all precincts in ~~the~~ **this**
 3 state ~~shall~~ **must** be made to ~~insure,~~ **ensure**, as near as is
 4 practicable, equal apportionment based ~~upon~~ **on** the total vote cast
 5 for the candidate of each political party for either ~~president~~
 6 **President** of the United States or secretary of state at the last
 7 general November election when elections for those offices were
 8 held, whichever is later. However, each precinct ~~shall~~ **must** have at
 9 least 1 delegate.

10 (4) The apportionment ~~shall~~ **must** be based on the precincts as
 11 ~~they~~ **the precincts** exist 180 days before the ~~August~~ **May** primary
 12 election in even numbered years.

13 (5) As many delegates in each precinct as a political party is
 14 entitled to according to the certificate authorized by the
 15 chairperson of the county committee or the board of election
 16 commissioners ~~shall~~ **must** be elected at the ~~August~~ **May** primary in
 17 even numbered years by direct vote of the registered electors of
 18 each political party in the county.

19 Sec. 641. (1) Except as otherwise provided in this section, an
 20 election held under this act ~~shall~~ **must** be held on 1 of the
 21 following regular election dates:

22 (a) The May regular election date, which is the first Tuesday
 23 after the first Monday in May.

24 ~~(b) The August regular election date, which is the first~~
 25 ~~Tuesday after the first Monday in August.~~

26 ~~(b) (c)~~ The November regular election date, which is the first
 27 Tuesday after the first Monday in November.

28 ~~(c) (d)~~ In each presidential election year when a statewide
 29 presidential primary election is held, the date of the statewide



1 presidential primary election as provided in section 613a.

2 (2) If an elective office is listed by name in section 643,
3 requiring the election for that office to be held at the general
4 election, and if candidates for the office are nominated at a
5 primary election, the primary election ~~shall~~**must** be held on the
6 ~~August~~**May** regular election date.

7 (3) Except as otherwise provided in this subsection and
8 subsection (4), a special election ~~shall~~**must** be held on a regular
9 election date. A special election called by the governor under
10 section 145, 178, 632, 633, or 634 to fill a vacancy or called by
11 the legislature to submit a proposed constitutional amendment as
12 authorized in section 1 of article XII of the state constitution of
13 1963 may, but is not required to be, held on a regular election
14 date.

15 (4) A school district may call a special election to submit a
16 ballot question to borrow money, increase a millage, or establish a
17 bond if an initiative petition is filed with the county clerk. The
18 petition ~~shall~~**must** be signed by a number of qualified and
19 registered electors of the district equal to not less than 10% of
20 the electors voting in the last gubernatorial election in that
21 district or 3,000 signatures, whichever number is lesser. Section
22 488 applies to a petition to call a special election for a school
23 district under this section. In addition to the requirements set
24 forth in section 488, the proposed date of the special election
25 ~~shall~~**must** appear beneath the petition heading, and the petition
26 ~~shall~~**must** clearly state the amount of the millage increase or the
27 amount of the loan or bond sought and the purpose for the millage
28 increase or the purpose for the loan or bond. The petition ~~shall~~
29 **must** be filed with the county clerk by 4 p.m. of the twelfth



1 Tuesday before the proposed date of the special election. The
 2 petition signatures ~~shall~~**must** be obtained within 60 days before
 3 the filing of the petition. Any signatures obtained more than 60
 4 days before the filing of the petition are not valid. If the
 5 special election called by the school district is not scheduled to
 6 be held on a regular election date as provided in subsection (1),
 7 the special election ~~shall~~**must** be held on a Tuesday. A special
 8 election called by a school district under this subsection ~~shall~~
 9 **must** not be held within 30 days before or 35 days after a regular
 10 election date as provided in subsection (1). A school district may
 11 only call 1 special election ~~pursuant to~~**under** this subsection in
 12 each calendar year.

13 (5) The secretary of state shall direct and supervise the
 14 consolidation of all elections held under this act.

15 (6) This section ~~shall be known and may be cited~~**referred to**
 16 as the "Hammerstrom election consolidation law".

17 Sec. 642a. (1) After December 31, 2004, a city council that
 18 adopted a resolution so that its regular election is held on the
 19 May regular election date may change its regular election to the
 20 odd year general election by adopting a resolution in compliance
 21 with section 642. If a city council adopts the resolution in
 22 compliance with section 642 to hold its regular election at the odd
 23 year general election, after December 31 of the year in which the
 24 resolution is adopted, the city's regular election is at the odd
 25 year general election.

26 (2) After December 31, 2004, a city council that holds its
 27 regular election for city offices annually or in the even year on
 28 the November regular election date may change its regular election
 29 schedule to the odd year general election and the odd year primary



1 election by adopting a resolution in compliance with section 642.
2 If a city council adopts the resolution in compliance with section
3 642, the city's regular election is at the odd year general
4 election and its primary is at the odd year primary election.

5 (3) After December 31, 2010, a city that adopted a resolution
6 so that its regular election primary is held at the September
7 election shall hold its regular election primary at the odd year
8 primary election.

9 (4) After December 31, 2011, a city that holds its regular
10 election for city offices annually or in the odd year on the
11 November regular election date may change its regular election
12 schedule to the even year general election and the even year
13 primary election by adopting a resolution in compliance with
14 section 642. If a city council adopts the resolution in compliance
15 with section 642, after December 31 of the year in which the
16 resolution is adopted, the city's regular election is at the even
17 year general election and its primary is at the even year primary
18 election.

19 (5) After December 31, 2012, a village that adopted a
20 resolution so that its regular election is held at the September
21 election shall hold its regular election at the general November
22 election.

23 **(6) After December 31, 2027, a city that holds its regular**
24 **election primary for a city office annually or in the even year on**
25 **the August regular primary election date shall hold its regular**
26 **election primary on the May regular primary election date.**

27 Sec. 686a. (1) If a political party entitled to a position on
28 the ballot failed to have at least 1 candidate who polled at least
29 5% of the total vote cast for all candidates for secretary of state



1 at the last preceding election at which a secretary of state was
 2 elected, candidates for that political party ~~shall~~**must** be
 3 nominated as provided in section 532. County caucuses and state
 4 conventions for ~~such~~**these** political parties ~~shall~~**must** be held not
 5 later than the ~~August~~**May** primary.

6 (2) County caucuses may nominate candidates for the office of
 7 ~~representative~~**Representative** in ~~congress~~**Congress**, state senator,
 8 and state representative if the offices represent districts
 9 contained wholly within the county, and for all county and township
 10 offices. Not more than 1 business day after the conclusion of the
 11 caucus, the names and mailing addresses of all candidates ~~so~~
 12 nominated and the offices for which ~~they~~**the candidates** were
 13 nominated ~~shall~~**must** be certified by the chairperson and secretary
 14 of the caucus to the county clerk. The certification ~~shall~~**must** be
 15 accompanied by an affidavit of identity for each candidate named in
 16 the certificate as provided in section 558 and a separate written
 17 certificate of acceptance of nomination signed by each candidate
 18 named on the certificate. The form of the certificate of acceptance
 19 ~~shall~~**must** be prescribed by the secretary of state. If a candidate
 20 is ~~so~~ certified with the accompanying affidavit of identity and
 21 certificate of acceptance, the name of the candidate ~~shall~~**must** be
 22 printed on the ballot for that election. Candidates nominated and
 23 certified ~~shall~~**are** not ~~be~~ permitted to withdraw.

24 (3) The county caucus may also select the number of delegates
 25 to the state convention to which the county is entitled and shall
 26 select its own officers and name its own county committee.

27 (4) The state convention ~~shall~~**must** be held at the time and
 28 place indicated in the call. The convention ~~shall~~**must** consist of
 29 delegates selected by the county caucuses. The convention may fill



1 vacancies in a delegation from qualified electors of that county
 2 present at the convention. The convention may nominate candidates
 3 for all state offices. District candidates may be nominated at
 4 district caucuses held in conjunction with the state convention
 5 attended by qualified delegates of the district. If delegates of a
 6 district are not present, a district caucus ~~shall~~**must** not be held
 7 for that district and candidates ~~shall~~**must** not be nominated for
 8 that district. Not more than 1 business day after the conclusion of
 9 the convention, the names and mailing addresses of the candidates
 10 nominated for state or district offices ~~shall~~**must** be certified by
 11 the chairperson and secretary of the state convention to the
 12 secretary of state. The certification ~~shall~~**must** be accompanied by
 13 an affidavit of identity for each candidate named in the
 14 certificate as provided in section 558 and a separate written
 15 certificate of acceptance of nomination signed by each candidate
 16 named on the certificate. The form of the certificate of acceptance
 17 ~~shall~~**must** be prescribed by the secretary of state. The names of
 18 candidates ~~so~~ certified with accompanying affidavit of identity and
 19 certificate of acceptance ~~shall~~**must** be printed on the ballot for
 20 the forthcoming election. Candidates ~~so~~ nominated and certified
 21 ~~shall~~**are** not ~~be~~ permitted to withdraw.

22 Sec. 737a. (1) Except as otherwise provided in this section,
 23 the board of election inspectors shall not count a write-in vote
 24 for ~~a person~~**an individual** unless that ~~person~~**individual** has filed
 25 a declaration of intent to be a write-in candidate as provided in
 26 this section. The write-in candidate shall file the declaration of
 27 intent to be a write-in candidate with the filing official for that
 28 elective office on or before 4 p.m. on the second Friday
 29 immediately before the election. The secretary of state,



1 immediately after the 4 p.m. filing deadline under this subsection,
2 shall prepare and have delivered a list of all ~~persons~~**individuals**
3 who have filed a declaration of intent to be a write-in candidate
4 under this subsection, if any, to the appropriate county clerks. A
5 filing official other than the secretary of state who receives a
6 declaration of intent to be a write-in candidate or list of ~~persons~~
7 **individuals** who filed a declaration of intent from another filing
8 official under this subsection shall prepare and have delivered a
9 list of all ~~persons~~**individuals** who have filed a declaration of
10 intent to be a write-in candidate to the board of election
11 inspectors in the appropriate precincts before the close of the
12 polls on election day.

13 (2) If a candidate whose name is printed on the official
14 ballot for the election dies or is otherwise disqualified after 4
15 p.m. on the second Friday immediately before the election, the
16 requirement of filing a declaration of intent to be a write-in
17 candidate under subsection (1) does not apply to a write-in
18 candidate. If a death or disqualification has occurred as described
19 in this subsection, the board of election inspectors shall count
20 all write-in votes for write-in candidates for the office sought by
21 the deceased or disqualified candidate.

22 (3) Subsections (1) and (2) do not apply to a write-in
23 candidate for precinct delegate. The board of election inspectors
24 shall not count a write-in vote for a write-in candidate for
25 precinct delegate unless that candidate has filed a declaration of
26 intent to be a write-in candidate as provided in this subsection. A
27 write-in candidate for precinct delegate shall file a declaration
28 of intent to be a write-in candidate with the county clerk of the
29 county in which that precinct is located on or before 4 p.m. on the



Friday immediately before the election or with the board of election inspectors in the appropriate precinct before the close of the polls on election day. A county clerk who receives a declaration of intent to be a write-in candidate from a write-in candidate for precinct delegate under this subsection shall prepare and have delivered a list of all ~~persons~~**individuals** who have filed a declaration of intent to be a write-in candidate to the city and township clerks for the appropriate precincts before election day. A city or township clerk shall deliver a list of all ~~persons~~**individuals** who have filed a declaration of intent to be a write-in candidate for precinct delegate to the board of election inspectors in the appropriate precincts before the close of the polls on election day.

(4) The secretary of state shall prescribe forms for the declaration of intent to be a write-in candidate. Clerks shall maintain a supply of declaration of intent to be a write-in candidate forms in the clerk's office and make the forms available in the polling places during the ~~August~~**May** primary for this purpose. The declaration of intent to be a write-in candidate form must include all of the following information:

(a) The name of the ~~person~~**individual** intending to be a write-in candidate.

(b) The elective office that the ~~person~~**individual** seeks as a write-in candidate.

(c) The residence address of the ~~person~~**individual** seeking elective office as a write-in candidate.

(d) Other information the secretary of state considers appropriate.

Sec. 766. (1) On receipt of any envelope containing the marked



1 ballot of an absent voter, the city or township clerk shall
2 determine whether the ballot is approved for tabulation by
3 verifying both of the following:

4 (a) The elector is a registered elector and has not voted in
5 person in that election.

6 (b) Using the procedures required under section 766a, the
7 signature on the absent voter ballot return envelope agrees
8 sufficiently with the elector's signature on file.

9 (2) Subject to section ~~510(8)~~, **510(7)**, if the city or township
10 clerk verifies the information in subsection (1)(a) and (b), the
11 clerk shall approve the absent voter ballot for tabulation and
12 record in the qualified voter file that the absent voter ballot has
13 been approved for tabulation. Subject to subsection (3), if the
14 city or township clerk is not able to verify the information in
15 subsection (1)(a) and (b), the clerk must reject the absent voter
16 ballot return envelope.

17 (3) If a city or township clerk rejects an absent voter ballot
18 return envelope because the signature on the absent voter ballot
19 return envelope is missing or does not agree sufficiently with the
20 elector's signature on file, the elector must be permitted an
21 opportunity to cure the deficiency as provided under section 766a
22 until 5 p.m. on the third day following the election in order for
23 the absent voter ballot, if otherwise valid, to be accepted for
24 tabulation.

25 (4) If an absent voter ballot return envelope that is eligible
26 to be cured is not cured by the close of polls on election day,
27 that absent voter ballot return envelope must be retained at the
28 clerk's office, and must not be turned over to the board of
29 election inspectors or to an absent voter counting board. An absent



1 voter ballot return envelope that is cured after the close of the
2 polls on election day, but before 5 p.m. on the third day following
3 the election, must be accepted and the ballot tabulated if the
4 elector has not voted in person in that election. An absent voter
5 ballot return envelope that is not cured by 5 p.m. on the third day
6 following the election remains rejected.

7 (5) On receipt of a cure form, as provided under section 766a,
8 that resolves the signature deficiency on an elector's absent voter
9 ballot return envelope, the clerk shall approve the ballot for
10 tabulation.

11 (6) Not later than the sixth day after election day, each city
12 or township clerk shall deliver the absent voter ballot return
13 envelopes that have been cured under subsection (4) to the county
14 clerk in a ballot container. The absent voter ballots in these
15 cured absent voter ballot return envelopes ~~shall~~**must** be tabulated
16 by the county clerk in a meeting of the board of county canvassers.

17 Sec. 963. (1) ~~Within~~**Not later than** 35 days after the filing
18 of the recall petition, the filing official with whom the recall
19 petition is filed shall make an official declaration of the
20 sufficiency or insufficiency of the recall petition. If the recall
21 petition is determined to be insufficient, the filing official
22 shall notify the person or organization sponsoring the recall of
23 the insufficiency of the recall petition. It is not necessary to
24 give notification unless the person or organization sponsoring the
25 recall files with the filing official a written notice of
26 sponsorship and a mailing address.

27 (2) If a recall petition is filed under section 960,
28 immediately upon determining that the recall petition is
29 sufficient, but not later than 35 days after the date of filing of



1 the recall petition, the county clerk with whom the recall petition
 2 is filed shall call the recall election and proceed under sections
 3 971c to 975. The recall election ~~shall~~**must** be held not ~~less~~**fewer**
 4 than 95 days after the date the recall petition is filed and ~~shall~~
 5 **must** be held on the next May regular election date or the next
 6 November regular election date, whichever occurs first.

7 (3) Except as otherwise provided in subsection (4), if a
 8 recall petition is filed under section 959, the filing official
 9 with whom the recall petition is filed shall call the recall
 10 primary election and proceed under sections 970b to 970g. The
 11 recall primary election ~~shall~~**must** be held on the next regular
 12 election date that is not ~~less~~**fewer** than 95 days after the date
 13 the recall petition is filed.

14 (4) If a recall petition is filed under section 959 demanding
 15 the recall of the governor, the filing official with whom the
 16 recall petition is filed shall call a special recall election and
 17 proceed under sections 975c to 975g. The special recall election
 18 ~~shall~~**must** be held not ~~less~~**fewer** than 95 days after the date the
 19 recall petition is filed and ~~shall~~**must** be held on the next May
 20 regular election date or the next ~~August~~**November** regular election
 21 date, whichever occurs first.

22 Sec. 970e. Subject to section 970b, the candidate of each
 23 political party receiving the greatest number of votes cast for
 24 candidates at the recall primary election as set forth in the
 25 report of the board of state canvassers, based on the returns from
 26 the various election precincts, ~~shall~~**must** be declared the nominee
 27 of that political party at the recall general election to be held
 28 on the next May regular election date or the next ~~August~~**November**
 29 regular election date, whichever occurs first. In addition, except



1 as otherwise provided in this section, a candidate without a
2 political party affiliation may qualify for the recall general
3 election by filing a qualifying petition with the officer with whom
4 the recall petitions were filed that contains 10% of the number of
5 signatures required under section 544f ~~within~~ **not later than** 10
6 days after the recall general election is scheduled. An individual
7 who was an unsuccessful candidate in the recall primary election
8 may not subsequently file a qualifying petition as a candidate
9 without a political party affiliation for the recall general
10 election.

11 Enacting section 1. This amendatory act takes effect January
12 1, 2028.